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TENTATIVE RULING

August 6, 2026

24SMCV04490 (United Security
Forces, LLC v. Security Industry Specialists, Inc.)

RELEVANT BACKGROUND

On September 17, 2024,
plaintiff United Security Forces, LLC (Plaintiff or USF) filed the complaint
against defendant Security Industry Specialists, Inc. (Defendant or SIS)
alleging four causes of action for breach of contract; account stated; open
book account; and breach of the implied covenant of good faith and fair
dealing.

On April 1, 2026,
Defendant filed the cross-complaint against Plaintiff alleging two causes of
action for breach of contract and breach of the implied covenant of good faith
and fair dealing.

Trial is set for July
12, 2027.

INSTANT MOTION

On June 4, 2026, Plaintiff filed the instant
motion for leave to file a first amended complaint (FAC). Defendant filed an

opposition, and Plaintiff filed a reply.

MEET AND CONFER

The Court finds that Plaintiff has satisfied the meet and confer requirement. (Mesa Decl. ¶ 15.)

DISCUSSION

“A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc., § 473, subd. (a)(1).) The court’s discretion will usually be exercised liberally to permit amendments of the pleadings. (*Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) Courts may grant a motion to amend as late as the time of trial and even postpone the trial if necessary to the furtherance of justice. (*Honig v. Financial Corp. of America* (1992) 6 Cal. App. 4th 960, 965.)

Under Rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why

the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

Here, in support of the instant motion for leave to file a FAC, Plaintiff has provided the declaration of counsel, David D. Mesa (Mesa). Attached to the Mesa Declaration is a copy of the proposed FAC. (See Mesa Decl., ¶ 2, Ex. A.) Mesa explains that the FAC seeks to accomplish five objectives:

(a) add Apple Inc. ("Apple") as a defendant;

(b) add four new causes of action against Apple (quantum meruit, unjust enrichment, intentional interference with contractual relations, and negligent interference with prospective economic advantage);

(c) update the damages allegations to reflect the full scope of unpaid invoices, which have increased from the originally pled \$3,244,973.98 to in excess of \$6,500,000;

(d) add factual allegations concerning SIS's invoice practices and Apple's involvement in the billing and payment relationship; and

(e) expand the fictitiously named Doe defendants from Does 1 through 20 to Does 1 through 40, with Does 1 through 20 directed at the existing claims against SIS and Does 21 through 40 directed at the new claims against Apple.

(Id.
¶ 2.)

Plaintiff

states that, when the Complaint was filed, it did not know the full extent of Apple's direct involvement in causing or contributing to USF's nonpayment. Mesa declares that, "[a]t the time USF filed the original Complaint in September 2024, USF knew that SIS was not paying its invoices but did not know the full extent of Apple's involvement in and contribution to the nonpayment. USF's contractual relationship was with SIS, and USF initially believed this was a straightforward contract dispute between USF and SIS. [¶] Beginning in late 2024 and continuing through 2025, USF obtained documents and information through investigation, discovery and its subpoena to Apple that revealed the

full scope of Apple's involvement.” (Id. ¶ 8, 9.)

Plaintiff

argues that the amendment will not prejudice Defendant because trial is not set to begin until July 12, 2027, discovery is ongoing, no dispositive motions have been filed or heard, and there is ample time for Defendant and Apple to conduct any additional discovery necessitated by the amendment and to prepare for trial without delaying the trial date.

In

opposition, Defendant argues that Plaintiff's delay in seeking amendment is unexplained and that Plaintiff groups together investigation, discovery, subpoena responses, invoice summits, and alleged operational directives without identifying when any particular document was received, when any witness supplied material information, or why the pleading could not have been amended months earlier.

Defendant

further argues that the proposed amendment would also include claims that are facially questionable, including a quantum meruit theory despite Plaintiff's allegation that Defendant, not Apple, requested and contracted for the services and interference claims premised largely on Apple's exercise of rights under its own contract with Defendant.

In

reply, Plaintiff reiterates that the claims against Apple were not known at the time of filing and continued to emerge through early 2026. Plaintiff also argues that Defendant has failed to show prejudice. Lastly, Plaintiff states that Defendant's arguments concerning the merits of the claims are premature.

The

Court finds that leave to amend is appropriate. Plaintiff has complied with California Rules of Court, rule 3.1324 by providing the Mesa Declaration, which attaches a redlined copy of the proposed amendment and specifies the effect of the amendment. (See Mesa Decl. ¶

2-9.) The declaration

explains that the amendment is necessary and proper, “because they will allow Plaintiff to recover all damages it has suffered from the wrongful acts of SIS and Apple in a single action, rather than requiring Plaintiff to initiate a separate proceeding against Apple on the same set of operative facts.” (Id. ¶

3.) Additionally,
counsel attests that the facts giving rise to the amendment were not discovered until after the complaint was filed, after conducting discovery. (Id. ¶ 11-14.)

The
Court finds no prejudice exists. As Plaintiff points out, trial is not set to begin until July 12, 2027, discovery is ongoing, and no dispositive motions have been filed or heard.

The
Court notes that it does not address the merits or the sufficiency of the pleading of the new claims. Defendant's arguments concerning those matters are premature at this stage.

Accordingly,
Plaintiff's motion for leave to file a FAC is GRANTED. Plaintiff has thirty (30) days to amend.